

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/14/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0004855

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: G. STRATFORD

PLAINTIFF: NATHAN JAMES CAVENEY	
vs.	
DEFENDANT: ALLBIRDS, INC.	

NATURE OF PROCEEDINGS: MOTION – OTHER: LIFT STAY

RULING

The unopposed motion of Defendant Allbirds, Inc. to lift the stay for the limited purpose of considering its motion for summary adjudication is **GRANTED**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyaiInzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/14/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0006252

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: G. STRATFORD

PLAINTIFF: COOPER KLINGER vs. DEFENDANT: NEW RIDE ELECTRIC LLC	
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NATURE OF PROCEEDINGS: MOTION – AMEND FIRST COMPLAINT

RULING

In light of the late filing of Plaintiff’s proposed amended pleading, Defendant may appear to request an opportunity to file a revised opposition. Otherwise, the Court’s tentative is as follows:

The motion of Plaintiff Cooper Klinger (“Plaintiff”) for leave to file an amended complaint is **GRANTED.**

Discussion

Under Code of Civil Procedure section 473, subdivision (a)(1), the Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding. As judicial policy favors resolution of all disputed matters in the same lawsuit, courts liberally permit amendments of the pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) Denial is rarely justified unless opposing parties demonstrate unreasonable delay plus prejudice if the motion is granted. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

Here, there is no claim of delay or prejudice. Instead Defendant asserts that many of the new claims are not well-pleaded. Generally, arguments attacking the merits of the proposed amendments do not justify denial of the motion. Courts allow the amendment and then let the parties test the legal sufficiency in other appropriate proceedings such as a demurrer. (*See Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

The motion is therefore granted without prejudice to Defendant bringing an appropriate motion challenging the new pleading or claims.